

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV421547	Farzam Forouzandeh vs Thaddeus Taube et al	Hearing on Motion for Summary Judgment, or in the Alternative, Summary Adjudication See Line 1 below for tentative ruling. The Court will prepare and file the formal Order.

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LINE 2	23CV423174	Ari Law, P.C. vs. Katalyst Development, LLC et al	Hearing on Motion for an Order Applying Property to Satisfy Judgment (CCP 708.205) The Plaintiff's motion was filed on January 12, 2026, and was accompanied by two declarations in support of the motion and proof of service. Defendants' opposition was filed on June 26, 2026, and accompanied by a declaration in opposition of the motion. A reply was filed by Plaintiff on July 2, 2026. On June 26, 2026, Defendants filed objections to one of the declarations filed in support of Plaintiff's motion. Plaintiff filed their response to the evidentiary objections on July 2, 2026, along with their objections to the declaration filed in support of Defendants' opposition to the motion. Defendant's objections to paragraphs 4,6,7,8,11,13, and 15 of Ali Mousavi's declaration are OVERRULED. Plaintiff's six objections to Walid Mando's declaration are OVERRULED. The Court has carefully reviewed the moving papers, including the declarations and attachments filed related to this motion, and has taken note of the procedural history as noted in the filings by both parties. Although the perfecting of an appeal generally stays proceedings and enforcement in the trial court under Code of Civil Procedure section 916 this general rule does not apply to money judgments. Specifically, Code of Civil Procedure section 917.1 dictates that the perfecting of an appeal does not stay the enforcement of a judgment or order for money or the payment of money unless an undertaking is given. Because the \$276,924.65 judgment issued on December 10, 2024 in this case is a money judgment (encompassing breach of contract and unpaid attorney fees) and the Defendants have not requested a stay of enforcement or provided a showing of or a sufficient undertaking, the judgment remains fully enforceable pending an appeal. To obtain a stay of enforcement for a money judgment, the appellant must provide a sufficient undertaking or bond. During judgment debtor examination proceedings, which are designed to discover and apply assets to satisfy a money judgment, the court is authorized to issue turnover and satisfaction orders. Under Code of Civil Procedure section 708.205, at the conclusion of an order for examination proceeding, the court may order the judgment debtor's interest in property in the possession or under the control of the judgment debtor (or a third
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